THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH-II

(CAA)-109/ND/2019

Connected with CA (CAA)-106/ND/2017

IN THE MATTER OF SCHEME OF AMALAGAMATION

OF

Augite Estate Private Limited
... (Petitioner Company No.1/Transferor Company No.1)

AND

Ostrich Estate Private Limited
... (Petitioner Company No.2/Transferor Company No.2)

AND

Moonlight Facilities Private Limited
... (Petitioner Company No.3/Transferor Company No.3)

WITH

India Ink Developers & Realtors Private Limited
... (Petitioner Company No.4/Transferee Company)

AND

Their respective shareholders and Creditors

Order Delivered on : 07.06.2022

Section 230 To 232 of the Companies Act, 2013

CORAM

SH. ABNI RAJAN KUMAR SINHA, HON'BLE MEMBER (JUDICIAL)

SH. L.N. GUPTA, HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Petitioner : Mr. Ajit Kumar, Adv.
For the RD : Ms. Shankari Mishra
For the IT Dept. : Ms. Vibhooti Malhotra and Mr. Shailendra Singh, Advs.
For the OL : Ms. Hemlata Rawat, Adv.

ORDER

PER SHRI L. N. GUPTA, MEMBER (T)

This Company Application has been jointly filed under the provisions of Sections 230-232 of the Companies Act, 2013 read with the Companies (Compromises, Arrangements Amalgamations) Rules, 2016 and the National Company Law Tribunal Rules, 2016 for the purpose of approval of Scheme of Amalgamation (for brevity **"the Scheme"**) of the Transferor Companies into the Transferee Company which shall take effect from the Appointed Date of 01.04.2017.

2. From the records, it is seen that the First Motion petition application was filed before this Tribunal vide CA (CAA)-106/ND/2017 under Sections 230-232 of the Companies Act, 2013 and vide order dated 21.05.2019, directions were issued by this Tribunal, whereby the meetings of the Equity Shareholders, Secured and Unsecured Creditors of all the Applicant Companies were dispensed with.

3. Subsequently, the Second Motion Application was moved by the Applicant Companies in connection with the Scheme of Amalgamation for issuance of notices to the Central Government, Registrar of Company NCT of Delhi & Haryana, Regional Director (Northern Region) MCA, Income Tax Authorities, Official Liquidator and to such other objector(s), if any, and also

for publication of the said Scheme. Directions were issued, vide Order dated 25.07.2019 of this Tribunal, requiring the Applicant Company to carry out necessary publication with regard to the said Scheme in the "Financial Express" (English) and "Jansatta" (Hindi) Delhi Edition newspapers.

4. That in compliance of the above stated directions, the Applicant Companies have duly filed an Affidavit of Service dated 11.09.2019 confirming that the aforesaid Notices of the present Company Application were published on 24.08.2019 in the "Financial Express" (English) and "Jansatta" (Hindi) Delhi Edition newspapers.

5. That accordingly, the sector regulators have filed their response. The Official Liquidator has filed its report dated 16.09.2019 and has raised not any objection towards the approval of Scheme. That scanned copy of the relevant extracts of the OL's report are reproduced overleaf :

15. That as per **Clause 8 of the Scheme,** the Authorised Share Capital of the Transferor companies shall be combined with the Authorised Share Capital of the Transferee Company.

16. That in Company Application No. CA(CAA) 106(ND)/2017, Hon'ble National Company Law Tribunal vides its order dated 21.05.2019 pleased to dispense with the requirement of convening all the meetings of shareholders of the Transferor Companies and Transferee Company and secured & unsecured creditors of the Transferee Company..

17. That the Official Liquidator has not received any complaint against the proposed Scheme of Amalgamation from any person/party interested in the Scheme in any manner till the date of filing of this Report.

18. That the report of Official Liquidator is based upon the documents/reply submitted by the petitioner companies. Balance sheet, Memorandum and Article of Association and other documents furnished by the petitioner companies has not been enclosed with the report as the same are already on records of National Company Law Tribunal.

19. That the Official Liquidator on the basis of information submitted by the Petitioner Companies is of the view that the affairs of the aforesaid Transferor Companies do not appear to have been conducted in a manner prejudicial to the interest of its members or to public interest as per the provisions of the Companies Act, 1956 / the Companies Act, 2013 whichever is applicable.

20. That in view of the submission made above the Hon'ble National Company Law Tribunal may like to pass such order/orders as deemed fit and proper in the facts and circumstance of the case.

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(D. K. SINGH)
OFFICIAL LIQUIDATOR
DELHI HIGH COURT

6. That the Regional Director (Northern Region) had initially raised its objections in regard to Stamp Duty & Registration Fee of the proposed Authorized Share Capital of the Transferee Company and with respect to the Appointed Date mentioned in the Scheme and it suggested modification of the Scheme. That accordingly, in the light of the objections raised by the RD, the Petitioner Companies modified the Scheme. That vide order 20.07.2021, this Bench had given last opportunity to the RD to file its report in respect of the revised Scheme. The order dated 20.07.2022 is reproduced overleaf :

"Heard Ld. Counsel appearing for the Petitioner as well as the RD. We notice that in pursuance to the objections raised by the RD, the Petitioner has submitted the revised Scheme. On the request of the RD, the matter was adjourned to enable them to file report in pursuance of revised scheme but the RD has not filed the same. Last opportunity is given to the RD to file its report. RD is directed to file the report within a week from today. No further adjournment will be granted on any ground. List the matter on 2 August, 2021."

7. That the RD (North) vide its additional affidavit dated 03.01.2022 had indicated the changes made in the Revised Scheme. The scanned copy of the same is reproduced overleaf :

i) In response to Para-11(a) of the affidavit of Deponent, the Petitioner Companies have modified the scheme by inserting a new clause-10 by stating the protection of interest of the employees by stating that:

"A new Para-10 dealing with protection of interest of the employees of the transferor companies after para 9.10 has been added in the scheme of the amalgamation".

ii. In response to Para-11(b) of the affidavit of Deponent, the Petitioner Companies have modified the scheme and replied that:

"By taking the note of concern of the Hon'ble office of the Registrar of Companies and office of the Regional Director regarding payment of registration fee and stamp duty on the proposed increased authorized capital of Rs. 7,00,00,000/- in terms of provisions of section 61 and section 64 of the Companies Act, 2013, the Board of Directors of the petitioner transferor and transferee companies had modified the para 8.4, 8.5 and 8.6 of the scheme accordingly and inserted that the transferee company shall pay requisite registration fee on increase of the authorized share capital from INR 1.25 crore to INR 7 crore by complying with the provisions of section 61 and 64 of the Companies Act, 2013.

iii. In response to Para-11(c) of the affidavit of Deponent, the Petitioner Companies have modified the scheme by stating therein that:

"By taking the note of the concern of the Hon'ble office of the Regional Director regarding the change of appointed Date from 01.07.2017 to 01.04.2017. The Board of the directors of the petitioner transferor and transferee companies has taken note of the same and modified the appointed date as 01.04.2017 in the Para-A of the Scheme of the amalgamation".

8. That the RD (North) vide the same Affidavit dated 03.01.2022, had stated that it is having no further objection. The scanned copy of the same is reproduced overleaf :

4. In view of the above, the submission of the Deponent is as under:

The observations as raised by the Deponent have been addressed by the Petitioner Companies and had passed requisite Board Resolutions which copies are enclosed with the reply submitted by them. The Board of Directors have modified the scheme pursuant to the power conferred to them in Para-9.7.1 of the scheme as filed before the Hon'ble Tribunal. The Petitioner Companies have modified/revised the scheme and have submitted a revised copy of the scheme enclosing therewith the copies of Board Resolutions as passed by the Board of Directors of the Petitioner Companies, the copies of which are enclosed herewith and marked as **Annexure-A.**

On examination of said reply submitted by the Petitioner Companies to the observations raised by the Deponent vide affidavit dated 25.02.2021, it is found that the Petitioner Companies have addressed the observations of the Deponent as stated above by amending the scheme and there appears to be no lapse in the modified scheme (as submitted by the Petitioner Companies). In view of the above the Hon'ble Tribunal may kindly

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consider/sanction of the modified scheme as submitted by the Petitioner Companies or may pass any order as deemed fit in this matter.

The above submissions are made in para 1 to 4 above after having examined the scheme and the reply of the Petitioner Companies for kind consideration of the Hon'ble Tribunal and for passing of orders as may be deemed fit and proper in the facts and circumstances of the case.

DEPONENT

VERIFICATION

I, Dr. Raj Singh, Regional Director (NR), the Deponent above do solemnly verify and affirm that the contents of Affidavit in para 1 to 4 are true to the best of my knowledge and belief and have been made believing it to be true.

Verified this - 6 JAN 2022 **day of December, 2021 at New Delhi.**

DEPONENT

The deponent who has identified himself in my presence on 03 JAN 2022

Identified By:

(A. K. Sahoo)

9. That the Income Tax Department failed to file its report despite opportunities. Therefore, the right of the Income Tax Department to file report was closed vide order dated 23.05.2022.

10. The Applicant companies has affirmed that no proceedings for inspection, inquiry or investigation under the provisions of the Companies Act, 2013 are pending against the Applicant Companies.

11. In view of the foregoing, upon considering the approval accorded by the members and creditors of all the petitioner companies to the proposed scheme, as well as in terms of the reports filed by the Regional Director, (Northern Region), Income Tax Department and Official Liquidator and further considering the affidavit of Applicant companies, there appears to be no impediment in sanctioning the present modified scheme. **Consequently, sanction is hereby granted to the modified Scheme under section 230 & 232 of the Companies Act, 2013.** The petitioners shall, however, remain bound to comply with the statutory requirements in accordance with law.

12. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this court to the scheme, will not come in the way of action being taken, albeit, in accordance with law, against any of the concerned person, director and officials of the Applicant Companies.

13. While approving the modified Scheme as above, we further clarify that this order should not be construed as an order in any way granting exemption from payment of stamp duty, taxes, GST, or any other charges, if any, and payment in accordance with law or in respect to any permission/ compliance with any other requirement which may be specifically required under any law.

14. **THIS TRIBUNAL FURTHER ORDER(S):**

a) That all the Transferor companies shall stand dissolved without following the process of winding up; and

b) That all the property, rights and powers of all the transferor companies, be transferred without further act or deed, to the transferee company and accordingly, the same shall pursuant to Section 232 of the Companies Act, 2013, be transferred to and vets in the transferee company.

c) That all the liabilities and duties of the all transferor companies, be transferred without further act or deed, to the transferee company and accordingly the same shall, pursuant to Section 232 of the Act, be transferred to and become the liabilities and duties of the transferee company; and

d) That all proceeding now pending by or against the transferor company, be continued by or against the transferee company;

e) That all the employees of all the transferor companies in service, on the date immediately preceding the date on which the scheme takes effect, i.e., the effective date shall become the employees of the transferee company on such date without any break or interruption in services and upon terms and conditions not less favorable than those subsisting in the respective transferor companies on the said date.

f) That Applicant companies shall within thirty days of the date of the receipt of this order cause a certified copy of this order to be delivered to the Registrar of Company for registration and on such certified copy being so delivered all the transferor companies shall stand dissolved and the Registrar of Company shall place all documents relating to all the transferor company registered with him on the file kept by him in relation to the transferee company and the files relating to all the petitioner companies shall be consolidated accordingly;

g) That any person interested shall be at liberty to apply to the tribunal in the above matter for any directions that may be necessary.

h) The Income Tax liability of the Transferor Company, if any, shall be realised from the Transferee Company.

15. The Application is allowed of in the above terms.

-Sd-

(L. N. Gupta)
Member (T)

-Sd-

(Abni Rajan Kumar Sinha)
Member (J)